

Nepal Health Professional Council Act, 1997

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 7

Nepal Health Professional Council Act, 2053

Royal Seal and Publication Date

2043.1.3

Certification and Publication Date

Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
2. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 30 of the year 2043

An Act Made to Provide for the Nepal Health Professional Council

Preamble: Whereas, to make the health service of Nepal effective in a timely manner, it is desirable to establish a Health Professional Council to systematically and scientifically mobilize the services of health professionals other than doctors and nurses eligible for registration under the Medical Council Act, and to make provision for registering their names according to their qualifications,

Now, therefore, Parliament has enacted this Act in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Health Professional Council Act, 2043."

(2) This Act shall come into force at such place on such date as the Government of Nepal may appoint by notification published in the Nepal Gazette. Appointed to come into force throughout Nepal from date 2044.2.21 (Nepal Gazette dated 2044.2.21). 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(1) "Council" means the Nepal Health Professional Council established pursuant to section 3.

(2) "Chairperson" means the Chairperson of the Council.

(3) "Member" means a member of the Council, and this word also includes the Chairperson.

(4) "Health profession" means the treatment, diagnosis, prevention of a patient's disease, or any work related to the health profession.

(5) "Health professional" means a person who has obtained the prescribed minimum qualification and is engaged in the health profession.

(6) "Register" means the register established for registering the names of health professionals under this Act.

(7) "Registered health professional" means a health professional whose name is registered in the register.

(8) "Committee" means a committee formed pursuant to section 12.

(9) "Registrar" means a person appointed or designated pursuant to section 13.

(10) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act. 3. Establishment of the Council: A Health Professional Council is established for the purpose of registering the names of health professionals according to their qualifications in order to operate health services in an organized manner. 4.

Composition of the Council: (1) The Council established pursuant to section 3 shall consist of the following members:- (a) A person nominated by the Government of Nepal from among persons who have obtained a postgraduate degree in a subject related to the health profession and have been engaged in the health profession for at least 5 years ? Chairperson (b) The President of the Nepal Health Technician Association, or a representative designated by him/her ? Member (c) The President of the Nepal Pharmaceutical Association, or a representative designated by him/her ? Member (d) The President of the Nepal Radiological Society, or a representative designated by him/her ? Member (e) Three registered health professionals nominated by the Government of Nepal, on the recommendation of the Nepal Health Technician Association, from the subject groups of Pathology, Physiotherapy, Public Health ? Members (f) Four health professionals elected from among themselves by registered health professionals as prescribed ? Members (g) The Dean of the Institute of Medicine, or a representative designated by him/her ? Member (h) Representative, Nepal Medical Council ? Member (2) The Government of Nepal may, after consultation with the Council, by notification published in the Nepal Gazette, increase, decrease or rearrange the members of the Council. (3) The Council may, if it deems necessary, invite any domestic or foreign expert in the field of medical profession to participate in the meeting as an observer. (4) Until the Council is formed, the Government of Nepal may form a committee covering the areas mentioned in section 4 to perform the work to be done by the Council. The term of the committee so formed shall be a maximum of one year. 5. Council to be an Autonomous Body: (1) The Council shall be a self-governing and corporate body with perpetual succession. (2) The Council shall have a separate seal for all its work. (3) The Council may acquire, possess, sell, dispose of, or otherwise manage movable and immovable property like a person. (4) The Council may sue and be sued in its own name like a person. 6. Term of Office of Members: (1) The term of office of nominated or elected members of the Council shall be three years. After the expiry of the term, they may be re-nominated or re-elected. (2) If the office of a member falls vacant before the expiry of the term, another member shall be nominated or elected for the remaining term. 7.

Disqualification for Membership: A person shall be disqualified from being nominated or elected as a member of the Council or from continuing as a member if he/she:- (1) is a non-Nepali citizen, (2) has had his/her name removed from the register, (3) has been convicted by a court of a criminal offense involving moral turpitude, or (4) is of unsound mind. 8. Circumstances for Termination of Membership: Membership of the Council shall be deemed to have terminated in the following circumstances:- (1) If the member becomes disqualified to remain a member pursuant to section 7, (2) If the resignation tendered from the office of member is accepted, (3) Upon death, or (4) If the member remains absent from more than three consecutive meetings of the Council without giving notice to the Council stating the reason. 9. Powers, Duties and Functions of the Council: The powers, duties and functions of the Council shall be as follows:- (1) To determine necessary policies for the smooth operation of work related to the health profession. (2) To determine policies relating to the curriculum, admission conditions and examination system of teaching institutions providing study and teaching related to health professionals, and to evaluate and review such matters. (3) To determine the qualifications of health professionals and make provision for registering the names of health professionals

who meet the qualifications. 10. Meetings and Decisions of the Council: (1) Meetings of the Council shall be held as determined by the Chairperson. (2) Meetings of the Council shall ordinarily be held three times a year, and the Chairperson may call additional meetings if deemed necessary. (3) The meeting of the Council shall be presided over by the Chairperson. In his/her absence, the meeting shall be presided over by a person chosen by the members from among themselves. (4) The presence of fifty percent of the total number of members of the Council shall constitute a quorum for a meeting of the Council. (5) The decision of the majority in a meeting of the Council shall prevail, and in case of a tie, the person chairing the meeting shall have a casting vote. (6) Decisions of the Council shall be certified by the Registrar. (7) Allowances and other facilities payable to members for participating in meetings shall be as prescribed. (8) Other procedures relating to meetings of the Council shall be as determined by the Council itself. 11.

Delegation of Powers: The Council may delegate its powers to the Chairperson, a member, or a committee of members as prescribed, as necessary. 12. Committee: (1) The Council may form committees relating to various subjects as prescribed for implementing the decisions of the Council. (2) The powers, duties and functions of a subject committee formed pursuant to subsection (1), and other procedures relating to its meetings, shall be as prescribed by the Council. 13. Registrar: (1) The Government of Nepal may appoint or designate any person engaged in the health profession as Registrar to carry out the administrative work of the Council. (2) The Registrar shall act as the Secretary of the Council. (3) The service, terms and facilities of the Registrar shall be as prescribed. (4) In the absence of the Registrar, the Government of Nepal shall designate any other officer-level employee of the Council to perform all the work to be done by him/her. 14. Powers, Duties and Functions of the Registrar: The powers, duties and functions of the Registrar shall be as follows:- (1) To implement or cause to be implemented the decisions of the Council. (2) To prepare the agenda for discussion to be presented at the meeting of the Council. (3) Other powers, duties and functions of the Registrar shall be as prescribed. 15. Employees of the Council: (1) The Council may appoint as many employees as necessary. (2) Employees appointed pursuant to subsection (1) shall be under the supervision and control of the Registrar. (3) The service, terms and facilities of the employees of the Council shall be as prescribed. 16. To Submit Application for Registration of Name in the Register: (1) A health professional who has obtained the prescribed minimum qualification and wishes to practice the health profession shall, subject to this Act and the rules made under this Act, submit an application as prescribed to the Council for registering his/her name in the register. (2) Health professionals who are practicing the health profession at the time of the commencement of this Act shall submit an application pursuant to subsection (1) within six months from the date of commencement of this Act to register their names in the register. (3) A health professional applying for registration of name pursuant to subsection (1) or (2) shall attach to the application the certificate of qualification, recommendation letter, degree, and the prescribed fee. 17.

Action on Application: (1) The Registrar shall make necessary inquiries into the application received pursuant to section 16 and submit it to the relevant subject committee for registration of name in the register. (2) Upon receipt of the application submitted pursuant to subsection (1), the relevant subject committee shall make inquiries as to whether the certificate of qualification and degree are recognized and whether the application is in proper form, and shall submit a report to the Council within fifteen days. (3) The Council shall decide whether or not to register the name of the applicant in the register based on the report submitted by the committee pursuant to subsection (2). (4) If the Council decides to register the name of the applicant pursuant to subsection (3), the Registrar shall register the name of such applicant in the register and issue a certificate of registration in the prescribed format, and if the Council decides not to register the name of the applicant, the Registrar shall inform the applicant thereof. 18. Removal of Name from Register and Re-registration: (1) The Council may order the removal of the name of a registered health professional from

the register in any of the following circumstances:- (a) If he/she has been convicted by a court of a criminal offense involving moral turpitude, (b) If it is determined by a two-thirds majority of the Council that he/she has failed to follow the prescribed professional conduct, or (c) If he/she becomes of unsound mind or physically incapable of practicing the profession. (2) If a health professional whose name has been removed from the register pursuant to subsection (1) applies for re-registration showing reasonable cause, the Council may, if it deems reasonable, order the re-registration of his/her name. (3) Upon receipt of an order pursuant to subsection (2), the Registrar shall, after charging the prescribed fee, re-register the name of such health professional in the register and issue a certificate. 19. Cancellation of Certificate: If information comes to light that the name of any person has been registered in the register by fraud or mistake, and upon inquiry such fact is found to be true, the Council may take back the certificate of registration of such person and cancel the registration. 20. Prohibition on Practicing Health Profession: One year after the commencement of this Act, no health professional other than a registered health professional shall, directly or indirectly, practice the health profession. 21.

Recognition of Academic Qualifications: (1) On the recommendation of the Council, the Government of Nepal may grant recognition to certificates of academic qualifications or other degrees related to the health profession. (2) Certificates of academic qualifications or degrees granted recognition by the Government of Nepal pursuant to subsection (1) shall be published in the Nepal Gazette. 22. Power to Require Information: The Council may, from time to time, require information from a teaching institution that provides recognized certificates of academic qualifications or other degrees pursuant to section 21, regarding the curriculum determined for such certificates or degrees and the conditions determined for admission, for the purpose of evaluation, and it shall be the duty of such institution to provide that information. 23. Inspection of Examinations: The Council may appoint and send inspectors to inspect examinations conducted by the relevant teaching institution for recognized certificates of academic qualifications or other degrees pursuant to section 21. An inspector so appointed shall submit a report to the Council stating the details prescribed by the Council regarding the examinations inspected by him/her. Provided that the inspector shall not interfere in any manner in such examinations. 24. Withdrawal of Recognition: (1) If, upon considering the information received pursuant to section 22 and the report received pursuant to section 23, the Council is of the opinion that the curriculum, admission conditions, and examination procedures determined by the relevant teaching institution for the certificates of academic qualifications or degrees recognized pursuant to section 21 are not appropriate and adequate, the Council shall submit its report to the Government of Nepal in that regard. (2) Upon receipt of the report of the Council pursuant to subsection (1), the Government of Nepal may, if deemed necessary, ask the relevant teaching institution for an explanation, and upon receipt of the explanation, after considering it and making any further inquiry if necessary, the Government of Nepal may, by notification published in the Nepal Gazette, withdraw the recognition of the certificate of academic qualification or other degree related to the health profession granted by such teaching institution after a specified date. 25. Fund of the Council: (1) The Council shall have a separate fund. (2) The fund of the Council shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received as registration fees for the names of health professionals, and (c) Amounts received from other sources. (3) The operation of the fund of the Council shall be as determined by the Council. 26.

Accounts and Audit: (1) The accounts of income and expenditure of the Council shall be maintained as prescribed. (2) The audit of the Council shall be carried out as prescribed. (3) The Government of Nepal may, if it so desires, inspect or cause to be inspected the books of accounts and related documents of the fund at any time. 27. Dissolution of the Council: (1) If the Government of Nepal is of the opinion that the Council has failed to exercise the powers conferred upon it under this Act or the rules made under this Act, or has abused

its powers, or has exercised powers beyond those conferred, or has failed to perform its duties under this Act or the rules made under this Act, the Government of Nepal may dissolve the Council. (2) After the Council is dissolved pursuant to subsection (1), the Government of Nepal shall keep the fund and other property of that Council in its own custody, and may itself perform all the work to be done by the Council under this Act and the rules made under this Act until another Council is formed, or may form a committee and cause it to perform such work. (3) Ordinarily within three months of the dissolution of the Council pursuant to subsection (1), the Government of Nepal shall form another Council pursuant to section 3. (4) After another Council is formed, the Government of Nepal shall hand over the fund and property kept in its custody pursuant to subsection (2) to that Council.

28. Penalties: (1) A person practicing the health profession in contravention of section 20 shall be liable to punishment as prescribed. (2) A person doing any act contrary to this Act or the rules made under this Act, other than as mentioned in subsection (1), shall be liable to punishment as prescribed.

29. Officer for Investigation and Inquiry: The authority to investigate and inquire into cases punishable under this Act shall vest in the officer designated by the Government of Nepal by notification published in the Nepal Gazette.

30. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases filed in court after investigation and inquiry pursuant to section 29.

31. Appeal: A person dissatisfied with a decision or order made by the Council under this Act may appeal to the amended by the Some Nepal Acts Amendment Act, 2072. High Court within thirty-five days from the date of receipt of notice of such decision or order.

32. Power to Make Rules: The Government of Nepal may, after consultation with the Council, make necessary rules for the purpose of implementing the objectives of this Act.

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